Roe v. Wade

U.S. Supreme Court · 410 U.S. 113 · January 22, 1973 · Justice Harry Blackmun (majority)

Source: Roe v. Wade, 410 U.S. 113 (1973), opinion of the Court by Justice Blackmun, text via Cornell Legal Information Institute. Public domain.

In a 7-2 decision, the Supreme Court struck down a Texas law criminalizing most abortions and held that the Constitution protects a woman's right to make decisions about her own pregnancy. Blackmun's majority opinion located that right in a 'zone of privacy' implied by the Due Process Clause of the Fourteenth Amendment and structured permissible state regulation around a trimester framework. Roe was a flashpoint of late-20th-century American politics; it was overturned by the Court in Dobbs v. Jackson Women's Health Organization (2022).

Connect: Roe uses the same 14th Amendment (Class 26) that was originally written to protect freedpeople after the Civil War. Trace how that amendment kept getting reinterpreted across a century.

Key Passages

The right of privacy

> This right of privacy, whether it be founded in the Fourteenth Amendment's concept of personal liberty and restrictions upon state action, as we feel it is, or, as the District Court determined, in the Ninth Amendment's reservation of rights to the people, is broad enough to encompass a woman's decision whether or not to terminate her pregnancy. The detriment that the State would impose upon the pregnant woman by denying this choice altogether is apparent.

Viability

> With respect to the State's important and legitimate interest in potential life, the 'compelling' point is at viability. This is so because the fetus then presumably has the capability of meaningful life outside the mother's womb. … If the State is interested in protecting fetal life after viability, it may go so far as to proscribe abortion during that period, except when it is necessary to preserve the life or health of the mother.

The holding

> A state criminal abortion statute of the current Texas type, that excepts from criminality only a life-saving procedure on behalf of the mother, without regard to pregnancy stage and without recognition of the other interests involved, is violative of the Due Process Clause of the Fourteenth Amendment.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The 1960s-70s women's movement and earlier privacy cases such as Griswold v. Connecticut (1965); many states had laws restricting abortion.
Intended Audience *Who was the source written for?*	The parties to the case, state legislatures, the courts, and the American public.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Justice Harry Blackmun for the 7-2 majority, applying a constitutional right to privacy; the dissenters (White and Rehnquist) argued it should be left to the states.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. LEQ Historical Reasoning — CCOT (1 pt): Write a thesis tracing change over time in women's legal status from 1848 (Seneca Falls) to 1973.
2. How did Roe rely on the same Fourteenth Amendment used to incorporate the Bill of Rights against the states?
3. Identify ONE later case that either expanded or restricted Roe before it was overturned in 2022.